Michael D. Braun (SBN 167416)
KUZYK LAW, LLP
2121 Avenue of the Stars, Ste. 800
Los Angeles, California 90067
Telephone: (213) 401-4100
Facsimile: (213) 401-0311
Email: mdb@kuzykclassactions.com
Peter N. Wasylyk (pro hac vice pending)
LAW OFFICES OF PETER N. WASYLYK
1307 Chalkstone Avenue
Providence, RI 02908
Telephone: (401) 831-7730
Facsimile: (401) 861-6064
Email: pnwlaw@aol.com
Counsel for Plaintiffs

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

ANNETTE ALARCON, DEBORAH PATT, and DEIDRE MOORHEAD on behalf of themselves and all others similarly situated,
Plaintiffs,
v.
THE COCA-COLA COMPANY,
Defendant.

Case No. 2:26-cv-11868

COMPLAINT FOR DAMAGES, EQUITABLE, DECLARATORY, AND INJUNCTIVE RELIEF

CLASS ACTION

DEMAND FOR JURY TRIAL

Plaintiffs Annette Alarcon, Deborah Patt and Deidre Moorhead ("Plaintiffs"), individually and on behalf of themselves and all others similarly situated, bring this class action against Defendant The Coca-Cola Company ("Defendant" or "Coca-Cola"), and on the basis of personal knowledge, information and belief, and the investigation of counsel, allege as follows:

INTRODUCTION

1. This is a proposed class action on behalf of California and New York classes of consumers seeking redress for Defendant's deceptive practices associated with the advertising, labeling, and sale of its Minute Maid Fruit Punch ("Products") which claim contain "100% Natural Flavors."

2. Unfortunately, the claim that the Product consists of "100% Natural Flavors" is false and misleading, because the Product contains a synthetic, non-natural flavoring ingredient in the form of industrially manufactured citric acid which, as Defendant's own label concedes, was added to "provide[] tartness," a flavor in the Product.

3. Despite prominently and boldly representing on the front of the package that the Products contain "100% Natural Flavors," the inclusion of manufactured citric acid, a synthetic ingredient whose function is to impart flavor (i.e., tartness), belies this representation rendering it false, misleading, and in violation of the law.

4. Defendant knows that consumers are willing to pay more for products promising "100% Natural Flavors" because they perceive such products to be more natural and healthier than products containing synthetic or artificial ingredients. Indeed, Defendant purposefully advertised its Product with the intention that consumers notice and rely on the representation that the Product consists of only (i.e., 100%) "Natural Flavors."

5. Plaintiffs allege that Defendant's conduct is in breach of warranty, violates California's Business and Professions Code § 17200, et. seq., California's

Business & Professions Code § 17500, et. seq., California Civil Code § 1750, et seq., and N.Y. Gen. Bus. Law §§ 349 and 350 et seq.

JURISDICTION AND VENUE

6. Jurisdiction of this Court is proper under 28 U.S.C. § 1332(d)(2). Diversity jurisdiction exists as Plaintiff Alarcon is a resident of Lancaster, California, Plaintiff Patt is a resident of Holley, New York, Plaintiff Moorhead is a resident of Brooklyn, New York and Defendant The Coca-Cola Company is a Delaware corporation headquartered in Atlanta, Georgia. The amount in controversy exceeds $5,000,000 for the Plaintiffs and members of the Class collectively, exclusive of interest and costs, by virtue of the combined purchase prices paid by Plaintiffs and members of the putative Class, and the profits reaped by Defendant from its transactions with Plaintiffs and the Class, as a direct and proximate result of the wrongful conduct alleged herein, and by virtue of the injunctive and equitable relief sought.

7. Venue is proper within this judicial district pursuant to 28 U.S.C. § 1391 because a substantial portion of the underlying transactions and events complained of occurred and affected persons and entities located in this judicial district, and Defendant has received substantial compensation from such transactions and business activity in this judicial district.

PARTIES

8. Plaintiff Annette Alarcon is a resident of Lancaster, California. Plaintiff Alarcon is a frequent purchaser of Minute Maid Fruit Punch having purchased the Product on several occasions over the past two years from Walmart locations in Lancaster, California and Ralph's in North Hills, California.

9. When Ms. Alarcon purchased the Products, she saw and relied on the representation made on the Product label that it consisted of "100% Natural Flavors." It was a material representation on which she relied in making her decision to purchase the Product.

10. Ms. Alarcon believed the representation on the Product's label was accurate, particularly in that it consisted of "100% Natural Flavors," (i.e., no synthetic or artificial flavoring ingredients).

11. Ms. Alarcon relied on Defendant's labeling and was misled thereby.

12. Ms. Alarcon would not have purchased the Product, or would have purchased the Product on different terms had she known the truth about their contents.

13. Ms. Alarcon was injured in fact and lost money as a result of Defendant's improper conduct.

14. Defendant The Coca-Cola Company is one of the largest beverage companies in the world and is the manufacturer, marketer, and seller of the Minute Maid brand of beverages.

GENERAL ALLEGATIONS

Citric Acid Is a Flavoring Ingredient in the Product

15. Acidulants are chemical compounds that impart a sour or acidic flavor to food products while also enhancing the perception of sweetness. Citric acid is the single most widely used acidulant in food and beverage formulation. In beverages, such as the Product at issue here, citric acid adds a clean, sharp tartness.

16. By their own admission, citric acid functions as a flavor in Defendant's Product, (i.e., "Provides Tartness"), which is a taste and a characterizing sensory attribute of the Product.

17. While acidulants such as citric acid may also have a preservative effect, for that purpose to have been intended, Defendant, by law, would have had to disclose it. 21 C.F.R. § 101.22(j) ("A food to which a chemical preservative(s) is added shall ... bear a label declaration stating both the common or usual name of the ingredient(s) and a separate description of its function, e.g., 'preservative', 'to retard spoilage', 'a mold inhibitor', 'to help protect flavor' or 'to promote color retention'). They did not.

18. Additionally, this Product is pasteurized. It is also considered a high acid beverage, (pH 2.86) wherein microbial stability can be achieved by pasteurization, thereby obviating or minimizing the need for supplemental preservation.

19. At bottom, by their own admission (i.e., "provides tartness") combined with the fact this is a highly acidic pasteurized beverage unquestionably shows that the citric acid was intended as, and functions as, a flavoring in the Product.

ECONOMIC INJURY

20. Plaintiffs sought to buy Products that were lawfully labeled, marketed, and sold.

21. Plaintiffs saw and relied on Defendant's misleading labeling of its Products.

22. As a result of Defendant's unlawful and deceptive conduct, Plaintiffs and members of the Class have been harmed.

CLASS ACTION ALLEGATIONS

23. In the alternative, the Class may be certified because Defendant has acted or refused to act on grounds generally applicable to the Class, thereby making appropriate preliminary and final equitable relief with respect to each Class.

24. The requirements for maintaining a class action pursuant to Rule 23(b)(2) are also met, as Defendant has acted or refused to act on grounds generally applicable to the Class, thereby making appropriate final injunctive relief or corresponding declaratory relief with respect to the Class as a whole.

FIRST CAUSE OF ACTION

Breach of Express Warranty

25. Plaintiffs incorporate each and every allegation contained in the paragraphs above as if restated herein.

26. Plaintiffs' express warranty claims are based on violations of N.Y. CLS UCC § 2-313 and § 2-607 and Cal. Com. Code § 2313. Defendants were afforded reasonable notice of this claim in advance of the filing of this complaint.

27. Defendant made express warranties to Plaintiffs and members of the Class that the Products contained "100% Natural Flavors."

28. The express warranties made to Plaintiffs and members of the Class appear on every Product label. This warranty regarding the nature of the Product marketed by Defendant specifically relates to the goods being purchased and became the basis of the bargain.

29. Plaintiffs and the Class purchased the Products in the belief that they conformed to the express warranties that were made on the Products' labels.

30. Defendant breached the express warranties made to Plaintiffs and members of the Class by failing to supply goods that conformed to the warranties it made. As a result, Plaintiffs and members of the Class suffered injury and deserve to be compensated for the damages they suffered.

31. Plaintiffs and the members of the Class paid money for the Products. However, Plaintiffs and the members of the Class did not obtain the full value of the advertised Products. If Plaintiffs and other members of the Class had known of the true nature of the Products, they would not have purchased them or paid less for them. Accordingly, Plaintiffs and members of the Class have suffered injury in fact and lost money or property as a result of Defendant's wrongful conduct.

32. Plaintiffs and the Class are therefore entitled to recover damages, punitive damages, equitable relief such as restitution and disgorgement of profits, and declaratory and injunctive relief.

PRAYER FOR RELIEF

33. THEREFORE, Plaintiffs, on behalf of themselves and on behalf of the other members of the Class and for the Counts so applicable on behalf of the general public request an award and relief as follows:

- An order certifying that this action is properly brought and may be maintained as a class action, that Plaintiffs be appointed Class Representatives, and Plaintiffs' counsel be appointed Lead Counsel for the Class.
- Restitution in such amount that Plaintiffs and all members of the Class paid to purchase Defendant's Product or restitutionary disgorgement of the profits Defendant obtained from those transactions, for Causes of Action for which they are available.
- Compensatory damages for Causes of Action for which they are available.
- Other statutory penalties for Causes of Action for which they are available.
- Punitive Damages for Causes of Action for which they are available.
- A declaration and Order enjoining Defendant from marketing and labeling its Product deceptively, in violation of laws and regulations as specified in this Complaint.
- An Order awarding Plaintiffs their costs of suit, including reasonable attorneys' fees and pre and post judgment interest.
- An Order requiring an accounting for, and imposition of, a constructive trust upon all monies received by Defendant as a result of the unfair, misleading, fraudulent, and unlawful conduct alleged herein.
- Such other and further relief as may be deemed necessary or appropriate.

DEMAND FOR JURY TRIAL

34. Plaintiffs hereby demand a trial by jury on all causes of action or issues so triable.

Dated: October 11, 2026

Respectfully submitted,

KUZYK LAW, LLP

By: /s/ Michael D. Braun
Michael D. Braun
Attorneys for Plaintiffs
Annette Alarcon, Deborah Patt, and Deidre Moorhead